Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

CSAA Insurance Exchange;

PHILLIPS, SPALLAS & ANGSTADT LLP;

PRIYA D. NAVARATNASINGHAM;

ALBERTO REYNA;

MICHAEL R. CHAMBERS;

CARBONE, SMITH & KOYAMA;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

EX PARTE APPLICATION FOR DOCUMENT PRESERVATION ORDER

Supporting Declaration of Franciscus Dylan Rosario; [Proposed] Order

PART I: EX PARTE APPLICATION

RELIEF REQUESTED

Plaintiff Franciscus Dylan Rosario applies ex parte for an order directing all Defendants to preserve, maintain, and refrain from destroying, altering, concealing, or disposing of the documents and records identified below. This application is made on the grounds that Defendants are now on notice of fraud-on-the-court allegations, that the records sought are critical to proving what was in the defense file, what Defendants knew, and what CSAA directed, and that without a preservation

order, there is a substantial risk of spoliation.

NOTICE

Plaintiff has provided notice of this ex parte application to all Defendants by email and telephone in compliance with Cal. Rules of Court, rule 3.1203.

GROUNDS FOR EX PARTE RELIEF

A. Irreparable Harm Without Immediate Relief

Ex parte relief is appropriate where the applicant demonstrates "irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) Here, the records targeted by this application are uniquely within Defendants' custody and control. Once destroyed, altered, or purged, they cannot be reconstructed. The harm is irreparable because:

1. **The complaint alleges fraud on the court.** Defendants are now on notice that their internal communications, billing records, and file transfer documentation are the evidence needed to prove the three-leg framework.
2. **Defendants have motive to destroy.** The internal records will show what was in the defense file when it transferred from Chambers to PSA on May 4, 2023, what PSA knew about the production history, and what CSAA directed.
3. **PSA's file-retention obligations are uncertain.** PSA was substituted out of the underlying action (replaced by Smith Koyama & Costello per the August 6, 2025 substitution). PSA's file-retention obligations for a former client's case may not extend indefinitely, and without a preservation order, PSA may purge the file in the ordinary course.
4. **CSAA may purge claim file records.** Insurers routinely purge claim files after closure. The underlying claim was closed by the April 25, 2025 judgment. Without a preservation order, CSAA's ordinary-course records retention may result in destruction of adjuster notes, diary entries, and internal correspondence.
5. **Vehicle and policy records at risk.** Plaintiff has reason to believe that the proof of insurance presented at the collision scene may have been for a different vehicle (a Toyota) than the Ford Transit commercial van involved in the incident. Body-worn camera footage from respond-

ing officers may show the insurance card presented. There is a substantial concern that the policy covering the incident vehicle may have been fabricated, backdated, or added after the collision. Policy records, underwriting files, and vehicle schedules are essential to establish when the policy was issued, what vehicles were covered, the classification of each vehicle (commercial vs private use), and whether the policy for the incident vehicle was active prior to February 4, 2021.

6. **Cross-defendant contradiction evidence.** Whether Chambers or Carbone Smith informed PSA that the 911 audio and body-worn camera footage had been produced by Plaintiff's counsel during discovery is central to fault attribution. If they did not inform, that supports transfer fault. If they did inform, that supports that PSA's "news to me" was deliberate. Preservation of transfer and handoff records is essential to prove or disprove this.

FACTUAL BASIS

The Complaint alleges that defense counsel made false representations to the Court about receipt, possession, and prior production of critical incident recordings, and that CSAA funded, directed, and controlled the defense. Additionally, Plaintiff alleges that the proof of insurance presented at the collision scene on February 4, 2021, was for a Toyota, not the Ford Transit commercial van involved. This discrepancy raises questions as to whether the policy covering the incident vehicle existed prior to the collision, whether it was later created or modified, whether the vehicle's commercial use was disclosed to the insurer, and whether the policy records accurately reflect what was in effect on the date of loss.

RECORDS TO BE PRESERVED

A. Phillips, Spallas & Angstadt LLP (PSA)

1. All internal communications (emails, memoranda, instant messages) regarding the defense file in *Rosario v. Abdelhalim*, CGC-21-594102, from May 4, 2023 through trial (April 25, 2025).
2. All billing records and time entries reflecting work on the case, including work related to preparation of Motions in Limine Nos. 6 and 17.

3. All file transfer documentation, inventories, and correspondence regarding the receipt of the defense file from Carbone Smith & Koyama on or about May 4, 2023.
4. All email correspondence with CSAA Insurance Exchange regarding the defense file, evidence, or litigation strategy.
5. All records reflecting receipt, review, or awareness of the 911 audio recording, body-worn camera footage, CAD log, and supplemental police report, including body-worn camera footage from the collision scene that may show the proof of insurance or insurance card presented to responding officers (Plaintiff alleges the card shown was for a Toyota, not the Ford Transit commercial van involved).
6. All records showing whether Navaratnasingham or Reyna reviewed the defense file before January 17, 2025, for purposes of preparing motions or trial.
7. All records of any request for or agreement to a continuance to verify production history during the February–April 2025 proceedings.
8. All records of any correction, withdrawal, or amendment of MIL Nos. 6 and 17 after the February 18, 2025 hearing at which J. Jessup testified that the evidence had been served on defense counsel during discovery.

B. Carbone Smith & Koyama (formerly Chambers)

1. All file transfer documentation, inventories, and correspondence regarding the transfer of the defense file to PSA on or about May 4, 2023.
2. All records reflecting the contents of the defense file as of the transfer date.
3. All correspondence with PSA regarding the defense file handoff.
4. All records showing whether Chambers or Carbone Smith informed PSA that the 911 audio recording and body-worn camera footage had been produced by Plaintiff's counsel during discovery in CGC-21-594102.
5. All records showing whether a written inventory, transmittal letter, index, or production history log was provided to PSA with the transferred defense file.

C. CSAA Insurance Exchange

1. The complete claim file for the Abdelhalim claim, including all adjuster notes, diary entries, and internal correspondence from February 4, 2021 through the present.
2. All litigation management records, instructions, and correspondence with defense counsel (Chambers, Carbone Smith & Koyama, PSA) regarding the defense of CGC-21-594102.
3. All records reflecting CSAA's investigation of the collision before, during, and after the February 25, 2021 denial letter.
4. **All policy records for Defendant Subhi Abdelhalim**, including: (a) policy declarations, policies, endorsements, and binders; (b) policy issuance dates, effective dates, and expiration dates for all policies from at least January 1, 2020 through the present; (c) vehicle schedules listing all vehicles covered (year, make, model, VIN); (d) classification of each vehicle (commercial vs private use) as disclosed to and recorded by CSAA; (e) underwriting file, application materials, and all disclosures regarding vehicle use and classification; (f) any policy changes, additions, or amendments made on or after February 4, 2021; (g) records reflecting when the policy covering the Ford Transit commercial van was first issued or added and whether that coverage was in effect prior to the collision.
5. All records reflecting or documenting the proof of insurance (insurance card) presented at the collision scene on February 4, 2021.
6. All records of CSAA's review, approval, or notice of the substance of Motions in Limine Nos. 6 and 17 before they were filed on January 17, 2025.
7. All records of any instruction to defense counsel to withdraw or correct the representations in MIL Nos. 6 and 17 at any time after January 17, 2025.
8. All records of CSAA's awareness, prior to January 17, 2025, that the 911 audio, body-worn camera footage, and CAD records had been served on defense counsel during discovery in CGC-21-594102.

D. Subhi Abdelhalim

1. All communications with defense counsel and CSAA regarding the 911 recording, BWC footage, or CAD log.
2. All communications with CSAA regarding the claim and defense.
3. **All vehicle and policy records**, including: (a) all insurance policies, declarations pages, insurance cards, and proof-of-insurance documents for January 1, 2020 through the present; (b) vehicle registration records for all vehicles owned, leased, or operated; (c) all applications, disclosures, and communications to insurers regarding vehicle use, purpose, classification, and the vehicles to be covered; (d) any documents reflecting what proof of insurance was presented to law enforcement at the collision scene on February 4, 2021.

LEGAL AUTHORITY

The Court has inherent authority to issue preservation orders to protect the integrity of pending litigation. (See *Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1420.) A preservation order is appropriate where there is a reasonable basis to believe that relevant evidence may be lost or destroyed. (*Cedars-Sinai Med. Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 12.)

Spoliation of evidence after a party is on notice of its relevance gives rise to adverse inferences (Evid. Code, § 413) and sanctions (Code Civ. Proc., § 2023.030). A preservation order ensures that any subsequent destruction triggers these remedies.

CONCLUSION

Plaintiff respectfully requests the Court issue the attached Proposed Order directing all Defendants to preserve the records identified above for the duration of this litigation.

PART II: DECLARATION OF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action, proceeding in pro per. I have personal knowledge of the facts stated herein, and if called as a witness, I could and would testify competently to them.
2. On or about February 27, 2026, I completed service of the Complaint in this action on all Defendants. The Complaint alleges an independent action in equity to set aside the judgment in *Rosario v. Abdelhalim*, CGC-21-594102, on the ground that the judgment was procured through extrinsic fraud on the court.
3. The Complaint alleges that Defendants Phillips, Spallas & Angstadt LLP, Priya D. Navaratnasingham, and Alberto Reyna made false representations to the Court about their receipt, possession, and knowledge of critical incident recordings, including a 911 audio recording, body-worn camera footage, and CAD log. The Complaint further alleges that Defendants Michael R. Chambers and Carbone, Smith & Koyama transferred the defense file to PSA on May 4, 2023, without ensuring proper documentation of the production history, which enabled successor counsel to make those false representations. The Court relied on these representations to exclude evidence and deny continuances.
4. The Complaint further alleges that Defendant CSAA Insurance Exchange funded, directed, and controlled the defense in CGC-21-594102.
5. I am concerned about the preservation of internal records for the following reasons:
   (a) **PSA's uncertain file-retention obligations.** PSA was substituted out as defense counsel in the underlying action on or about August 6, 2025. As former counsel for a client now represented by different attorneys, PSA's obligations to retain the defense file may be limited or uncertain.
   (b) **Motive to destroy.** All Defendants are now on notice that the Complaint alleges fraud on the court based on false representations about evidence possession. Defendants have a motive to destroy or alter records that could confirm the allegations.
   (c) **CSAA's claim file retention.** The underlying claim was closed by the April 25, 2025 judgment. Insurers routinely purge claim files after a period following claim closure.

(d) **File transfer records.** The contents of the defense file on the May 4, 2023 transfer date are critical to proving Leg 1 of the complaint's three-leg framework.

(e) **Vehicle and policy records.** Plaintiff has reason to believe that the proof of insurance presented at the collision scene was for a Toyota, not the Ford Transit commercial van involved. Body-worn camera footage from the scene may document this. There is a substantial concern that the policy covering the incident vehicle may have been fabricated, backdated, or added after the collision. CSAA's policy records, underwriting files, vehicle schedules, and Abdelhalim's policy-related documents are essential. Without preservation, these records may be altered or purged.

6. I believe that without a preservation order, there is a substantial risk that some or all of these records will be destroyed, altered, or purged before they can be obtained through formal discovery.

7. I have provided notice of this ex parte application to all Defendants by email and telephone.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Dated: March 9, 2026

FRANCISCUS DYLAN ROSARIO

PART III: [PROPOSED] ORDER GRANTING EX PARTE APPLICATION

The Ex Parte Application of Plaintiff Franciscus Dylan Rosario for a Document Preservation Order having come before this Court, and good cause appearing therefor,
IT IS HEREBY ORDERED that:

1. All Defendants, and each of them, shall immediately preserve, maintain, and refrain from destroying, altering, concealing, transferring, or disposing of the following records:
   (a) **Phillips, Spallas & Angstadt LLP:** All internal communications, billing records, time entries, file transfer documentation, and correspondence regarding the defense file in *Rosario v. Abdelhalim*, CGC-21-594102, from May 4, 2023 through the present, including all records reflecting receipt, review, or awareness of the 911 audio recording, body-worn camera footage, CAD log, and supplemental police report; records showing whether Navaratnasingham or Reyna reviewed the defense file before January 17, 2025; records of any request for continuance to verify production history; and records of any correction or withdrawal of MIL Nos. 6 and 17 after February 18, 2025.
   (b) **Michael R. Chambers; Carbone, Smith & Koyama:** All file transfer documentation, inventories, and correspondence regarding the transfer of the defense file to PSA on or about May 4, 2023, and all records showing whether Chambers or Carbone Smith informed PSA of the production history or provided a written inventory or transmittal with the transferred file.
   (c) **CSAA Insurance Exchange:** The complete claim file, including all adjuster notes, diary entries, internal correspondence, and litigation management records; all records of CSAA's review, approval, or notice of MIL Nos. 6 and 17 before filing; records of any instruction to withdraw or correct those representations; and records of CSAA's awareness before January 17, 2025 that the 911, body-worn camera footage, and CAD had been served on defense counsel; and all policy records for Abdelhalim, including policy declarations, issuance and effective dates, vehicle schedules (year, make, model, VIN), vehicle classification (commercial vs private use), underwriting file, any policy changes after February 4, 2021, and records showing when the policy covering the Ford Transit commercial van was first issued or added and whether it was active prior to the collision.
   (d) **Subhi Abdelhalim:** All communications with defense counsel and CSAA regarding the 911 recording, BWC footage, CAD log, and the claim and defense; and all vehicle and policy records, including insurance policies, declarations, insurance cards, proof-of-insurance documents, vehicle registration records, applications and disclosures to insurers regarding vehicle use and classification, and any documents reflecting what proof of insurance was presented at the collision scene.
2. This Order shall remain in effect for the duration of this litigation unless modified by further order of the Court.
3. Violation of this Order may result in sanctions, including adverse inferences (Evid. Code, § 413), monetary sanctions (Code Civ. Proc., § 2023.030), and such other relief as the Court deems appropriate.
4. Plaintiff shall serve a copy of this Order on all Defendants within 48 hours of its issuance.

Date: March 9, 2026

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Judge, Superior Court of the State of California
County of San Francisco